

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

CRM-M-31551-2026
Date of decision: 11.06.2026

Pahlad Singh

...Petitioner

Versus

State of Haryana

...Respondent

CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present: Mr. Hitesh Pandit, Advocate for the petitioner.

DEEPAK GUPTA, J. (ORAL)

By way of this petition filed under Section 483 BNSS, prayer is made for grant of regular bail in case FIR No.33 dated 01.03.2025, under Section 20(b)(ii)(c) of the NDPS Act, registered at Police Station Loharu, District Bhiwani.

2. As per the allegations, 1 kg 360 grams of Charas was recovered from the possession of one Kuldeep, who in his disclosure statement nominated one Naveen as the supplier. Said Naveen upon his interrogation disclosed the name of the petitioner to be the supplier of the contraband.

3. Learned counsel submits that petitioner has been apprehended only on the basis of statement of co-accused Naveen. He has nothing to do with the case. He is neither named in the FIR nor is any other case pending against him.

4. Notice of motion.

5. Mr. Gautam Kailey, DAG, Haryana, appears for the State and submits the custody certificate. Learned State counsel concedes that petitioner has been nominated only on the basis of disclosure statement of co-accused Naveen and that there is no other evidence against him. It is also conceded by learned State counsel that though petitioner was earlier



involved in one case bearing FIR No.84 of 2020 under Sections 25 and 29(A) of the NDPS Act, but he has since been acquitted in that case.

6. Custody certificate further reveals that petitioner is in custody for the last five months.

7. Although the contraband recovered from co-accused Kuldeep falls in the commercial category, but having regard to the fact that no recovery has been effected from the petitioner and he has been nominated only on the basis of the disclosure statement of co-accused, the present petition is accepted. Petitioner is ordered to be released on bail on his furnishing bail bonds and surety bonds to the satisfaction of learned Trial Court/CJM/Duty Magistrate concerned, on usual terms and conditions.

11.06.2026

Yogesh

**(DEEPAK GUPTA)
JUDGE**

Whether speaking/reasoned:- Yes/No
Whether reportable:- Yes/No